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Order Scheduling Rule 11 Hearing

United States District Court for the Middle District of North Carolina United States v. Mateo Serrano Criminal Action No. SYN-MDNC-25-CR-0328 Docket Entry 20 Entered November 14, 2025

Upon the defendant's notice of intent to change plea and the parties' joint status report, the court sets a hearing for November 18, 2025, at 10:00 a.m. in the fictional exercise courtroom assigned to District Judge Elara Venn. The hearing will address any proposed guilty plea under Federal Rule of Criminal Procedure 11. This scheduling order makes no finding about guilt, the terms of any agreement, or the sentence that could later be imposed.

Mateo Serrano must appear personally with defense counsel Celia Arden. Government counsel Bram Ives must appear for the fictional United States. Counsel shall be prepared to identify the charge to which a plea may be offered, confirm that the defendant has reviewed any written agreement, and state whether an interpreter or accommodation is requested. No such request is presently reflected on the docket. The clerk shall provide ordinary public notice of the hearing while withholding no document merely because a plea may be discussed.

Purpose and Scope of the Hearing

The hearing is reserved for the court's personal examination of Serrano and for the findings required before any plea may be accepted. The court will not treat counsel's representations as a substitute for Serrano's own answers. The examination will cover competence, voluntariness, the nature of the charge, the consequences of conviction, and the terms of any plea agreement disclosed in open court.

If the written agreement contains a waiver of appellate or collateral-review rights, counsel must identify the language precisely. The court will explain the waiver to Serrano personally and will distinguish any retained claim from the rights surrendered. A general acknowledgment that the agreement has been read will not replace that focused inquiry. The parties shall alert the court before the hearing if their copies differ or if an attached page has not been signed.

Nothing in this order requires Serrano to plead guilty. He may maintain his existing plea, and no adverse inference will be drawn from that choice. If the court does not accept a proposed plea, the existing scheduling posture remains subject to a later order. Any factual basis offered by stipulation remains an allegation unless and until Serrano adopts it and the court finds it sufficient.

Materials Due Before the Proceeding

By 4:00 p.m. on November 17, the parties shall deliver to the clerk a clean execution copy of any proposed plea agreement and a separate stipulated factual basis, if one exists. The documents must bear the fictional case caption and must identify the single count addressed. Signatures may be completed at the hearing, but counsel shall certify beforehand that Serrano has had adequate time to review the text with Arden.

The agreement must state whether the parties have reached any stipulation concerning the Sentencing Guidelines. If the aggravating-role question remains disputed, the document should say so without attempting to resolve the issue through the scheduling process. The parties also shall disclose whether restitution, forfeiture, or a special assessment is contemplated, while recognizing that the sentencing court is not bound by a recommendation unless a rule expressly provides otherwise.

Any factual basis must remain non-actionable and may describe the alleged reimbursement fraud only at an abstract level. It shall not reproduce financial credentials, transmission instructions, account routing, evasion methods, or private identifiers. This synthetic record concerns legal procedure and sentencing doctrine, not a method for committing or concealing an offense.

Personal Participation and Counsel's Duties

Arden shall confer with Serrano about the charge, the maximum statutory consequences, the court's sentencing authority, and every waiver term before the hearing begins. Counsel must ensure that Serrano understands that a Guidelines estimate is not a promise and that the presentence investigation may produce disputed recommendations. The court expects counsel to preserve a clear distinction between stipulated facts and sentencing positions left open for later litigation.

Ives shall be prepared to summarize the government's obligations under the agreement and to state whether any promise exists outside the written document. If the government retains the right to advocate for an aggravating-role adjustment, that reservation must be stated plainly. If Serrano retains the right to object to the adjustment, that reservation must be equally plain. Neither party may characterize an unresolved role question as already decided.

At the hearing, Serrano may ask for additional time to consult counsel. The court will recess if a material term has not been explained. The clerk will create a verbatim transcript so later readers can evaluate what the court asked and what Serrano answered, rather than relying on a summary prepared after the event.

Waiver Inquiry Reserved for Open Court

The parties' filings indicate that the proposed agreement may contain a broad waiver of conviction and sentencing appeals together with a specific exception concerning complete denial of personal allocution. The court will not approve that formulation through this written scheduling order. It will examine the language at the hearing and determine whether Serrano knowingly and intelligently assents to both the general rule and the exception.

The examination shall separate three concepts. First, a sentencing appeal under 18 U.S.C. § 3742 may be surrendered by agreement. Second, a dispute over a Guidelines calculation can fall within such a waiver even if a party believes the calculation is wrong. Third, an expressly preserved claim remains outside the waiver according to the accepted text. The court will ask Serrano to explain, in his own words, the practical difference between a waived Guidelines challenge and the proposed allocution reservation.

This notice is procedural only. It does not decide whether the waiver will be enforceable, whether the reserved circumstance will occur, or how an appellate court would classify a future claim. Those matters depend on the executed agreement, the colloquy, and later events.

Public Record and Confidential Material

The plea hearing and the clean plea documents are expected to remain on the public docket. The parties shall not attach a presentence report, draft probation material, private identifying information, or any document subject to automatic confidentiality. Presentence investigation has not yet begun, and this order creates no right of access to any report that may later be prepared.

If counsel must refer to a private fact to explain competence or an accommodation, counsel should first request a sidebar or use a neutral description. The public transcript should contain enough information to establish the court's findings without exposing unnecessary personal detail. No real address, account number, credential, medical record, or third-party identifier belongs in this fictional exercise record.

The clerk shall mark the proposed plea agreement and factual basis as received when tendered. If the court accepts the plea, the clerk may file the executed copies as separate public docket entries. If the documents are withdrawn before acceptance, the clerk shall follow the court's direction concerning retention. This paragraph does not authorize sealing and does not alter any rule that independently makes a later presentence document nonpublic.

Directions to the Clerk and Parties

The clerk shall send this order to Arden and Ives and shall note delivery on the fictional docket. The courtroom deputy shall arrange a record of the proceeding and confirm that Serrano can hear and respond to the court's questions. Counsel shall arrive sufficiently early to resolve exhibit numbering and signature logistics without delaying the personal colloquy.

No sentencing date is fixed by this order. If a plea is accepted, the court will direct preparation of a presentence report and will later establish disclosure, objection, and sentencing dates consistent with the then-effective rules. The probation office shall not begin substantive interviews solely on the basis of a notice of intent; an accepted plea or another proper referral is required.

All prior conditions of release or detention remain unchanged. The November 18 setting supersedes no deadline except to the limited extent stated here. Any request to continue the hearing must identify the reason and the position of the other party. The order is entered without prejudice to Serrano's right to maintain his plea, seek advice, or decline the proposed agreement.

SO ORDERED this 14th day of November, 2025.

Elara Venn Fictional United States District Judge